
**FOOD AND NUTRITION SERVICES CERTIFICATION
ELIGIBILITY REQUIREMENTS
FNS 212 HOUSEHOLD COMPOSITION SPECIAL ARRANGEMENTS**

Change #3-2026

September 1, 2026

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212.01 HEAD OF THE FNS UNIT

- A. The FNS unit must designate an individual to be the head of the FNS unit. The person chosen as the head of the FNS unit must:
1. Have primary responsibility for the health and well-being of the FNS unit members; **and/or**
 2. Have responsibility for the financial obligations of the FNS unit; **and/or**
 3. Be otherwise exercising control over the FNS unit
- B. Change of Head of Household:
1. The designation as head of the FNS unit may be changed at application, recertification, or removal of the current head of the FNS unit.
 2. Keep in mind that the household's EBT card will be issued to the head of household.
 3. The individual who will purchase groceries and handle daily business transactions would be an appropriate head of household.
- C. **Do not** use the head of the FNS unit designation to impose special requirements, such as requiring the head of the FNS unit to make application, recertification, or request changes. Unless otherwise stated in policy, **all** adult household members may complete application, recertification, or request changes.

212.02 SPECIFIED PERSON

An individual meeting one of the following criteria is considered a specified person:

- A. An individual 60 years of age or older; **or**
- B. A person who receives supplemental security income benefits under Title XVI of the Social Security Act or disability or blindness payments under Titles I, II, X, XIV, or XVI of the Social Security Act; **or**
- C. A person who receives federally or State administered supplemental benefits under Section 1616(a) of the Social Security Act provided that the eligibility to receive the benefits is based upon the disability or blindness criteria used under Title XVI of the Social Security Act; **or**

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- D. Receives disability benefits from a governmental agency based on permanent Social Security disability requirements; **or**
- E. Is a Veteran who receives 100% Veterans Administration (VA) disability payments (service or non-service connected) or is rated as 100% disabled but receives less than 100% disability payment; **or**
- F. Is a Veteran considered by the VA to be in need of regular aid and attendance or permanently housebound under Title 38 of the U. S. Code; **or**
- G. Is a disabled surviving spouse or disabled surviving child of a veteran and in need of regular aid and attendance or permanently housebound or considered by the VA to be entitled to compensation for a service-connected death or pension benefits for a nonservice-connected death under Title 38 of the U. S. Code; **or**
- H. Receiving Railroad Retirement and determined to be eligible for Medicare; **or**
- I. Receiving Interim Assistance Payments (DSS General Assistance to applicants for SSI that is repaid by SSA upon approval of the SSI application); **or**
- J. Receiving Medicaid based on disability; **or**
- K. Benefits under the Federal Employees Compensation Act (FECA) based on Social Security disability requirements.

212.03 INDIVIDUALS RESIDING IN A SPECIAL ARRANGEMENT

A. Institutionalized

Individuals are considered residents of an institution when the institution provides them with the majority of their meals (over 50% of three meals daily) as part of the institution's normal services. Students of higher education that are required to purchase meal plans as part of normal school policy are not considered institutionalized. Institutionalized individuals are not eligible to participate except as specified in B - F below.

B. Group Home/Group Living Arrangement (GLA)

A GLA is a public or private non-profit residential setting that serves no more than 16 residents. A GLA resident must be blind or disabled or receiving benefits under Title II or Title XVI of the Social Security Act to be eligible for FNS benefits.

1. The GLA must meet the following conditions prior to certifying any of its residents for FNS benefits:

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- a. Be authorized by USDA to accept Food and Nutrition Services benefits; **or**
 - b. Be certified by the State as a GLA; **and**
 - c. The GLA must be determined to be a non-profit organization.
2. Residents can apply through the facility which will serve as an authorized representative. Eligibility must be determined as a one-person FNS unit; **or**
 3. The resident may apply on his own behalf or select an authorized representative of his own choice. This will be determined by the GLA, based on the individual's mental and physical ability to handle his/her own affairs. The FNS unit size will be based on the number of individuals purchasing and preparing meals together.
 4. The GLA may only purchase food for eligible Food and Nutrition Services recipients. If the Food and Nutrition Services recipient makes someone at the GLA his/her Authorized Representative. Refer to Section 220, Authorized Representatives.
- C. Residents of a Shelter for Battered Women and Children

Battered Women and Children's Shelter is a public or private non-profit residential facility that serves battered women and their children. If such a facility services other individuals, a portion of the facility must be set aside on a long-term basis to serve only battered women and children.

Residents of shelters may be considered as either an individual FNS unit (including their children) or a group FNS unit. To make this determination, you will need to know whether food is customarily purchased and prepared separately or in common with the group. These provisions apply to battered women and children but do not apply to battered men. These special provisions concern Food and Nutrition Services eligibility for residents of shelters for battered women and children that provide meals to their residents.

1. Prior to certifying residents of battered women's shelter:
 - a. Verify that the shelter meets the definition of a shelter for battered women and children. Shelters authorized by USDA to accept EBT benefits meet the definition of a battered women's shelter.
 - b. Shelter residents may appoint an authorized representative though it is not required. See Section 220, Authorized Representatives, for more details.

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2. When the resident of the battered women's shelter is in a currently certified FNS unit:
 - a. Shelter residents may apply for and receive Food and Nutrition Services benefits separately from the household they are currently certified in. This can only be done if they are a member of a certified household that contains the person who subjected them to the abuse.
 - b. Shelter residents who are included in a currently certified FNS unit may receive an additional allotment as a separate FNS unit only once a month.
 - c. Certify shelter residents based on their income, resources, and allowable expenses. Do not consider the former household's income, resources, or other expenses against the shelter individual(s).
 - d. Take prompt action to ensure that the shelter residents are removed from their former FNS unit.

D. Certain Residents of Federally Subsidized Housing

Residents of federally subsidized housing for the elderly built under Section 202 of the Housing Act of 1959 are residents of institutions. These individuals are allowed to participate in the Food and Nutrition Services Program.

E. Residents of an Alcohol and Drug Treatment Center

1. For Food and Nutrition Services purposes, Alcohol and Drug Treatment Centers (ADTC) are **publicly operated or private** non-profit institutions providing treatment that can lead to the rehabilitation of the residents, this includes faith-based and community Drug Addiction and Alcoholic (**DAA**) Treatment and Rehabilitation Programs.
2. Narcotic addicts or alcoholics who regularly participate in drug or alcoholic treatment and/or rehabilitation program(s) on a resident basis, including their children **but not the spouses of such persons who live with them at the treatment center or facility**, may participate in the Food and Nutrition Services Program providing all points of eligibility are met.
 - a. Center residents must apply **and be certified** through an authorized representative **who is employed by the drug addiction or alcohol treatment center and designated by the center for that purpose.**
 - b. Center residents must be certified as a one-person FNS unit unless their child(ren) are living with them, **in which case their children must be included in the FNS unit with the parent.**

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- c. At each application and recertification, verify approved drug treatment programs through:

Chief, Drug and Rehabilitation Branch
Division of Mental Health/DD/SAS
Department of Health and Human Services
3007 Mail Service Center
Raleigh, North Carolina 27699-3007
(919) 855-3795

3. Responsibilities of the ADTC when participating in the Food and Nutrition Services Program.

- a. The facility must be an approved treatment center. Verify approved alcohol treatment center programs through the Division of Mental Health. A listing of the licensed treatment centers, by county can be found on DHSR website, <https://info.ncdhhs.gov/dhsr/>.

If an ADTC is not licensed by the Division of Mental Health and cannot provide documentation that meets the Food and Nutrition Services criteria for an ADTC, provide the ADTC with contact information to the Division of Mental Health.

- b. **Key Routine Dates:**

5th and 20th of Each Month	10th and 25th of Each Month
Provide the local agency a list of clients that are currently residing and participating in the ADTC/DAA treatment center. Providing the list of clients to the local agency with a signature and date from a reliable center official indicating the validity of the list.	Verifying that the list provided to the local agency is accurate during the site visit by the center's official/authorized representative. There is no requirement to physically see the residents for verification.

- c. The treatment center must report changes in the FNS unit's situation, such as income, resources, and circumstances of individuals in the assistance unit. Refer to Sections 450 and 550 for reportable changes.
- d. When the FNS unit leaves the treatment center, **the ADTC must perform the following:**

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- i. Notify the county DSS office. If possible, the center must provide the FNS unit with a change report form (DSS-8550) to report to the county the FNS unit's new address and other circumstances after leaving the center and return the form to the agency **within 10 days**. After the FNS unit leaves the ADTC/DAA treatment center, the center can no longer act as the FNS unit's authorized representative for certification purposes or for obtaining or using benefits. The ADTC will use the DSS-8550 Change Report Form link to maintain copies of the DSS-8550, and counties will ensure the treatment centers also have copies available.
- ii. Provide the FNS unit with its EBT and ID card if it is in the possession of the ADTC/DAA treatment center. The center must return to the agency any EBT card not provided to departing residents by the end of each month.

NOTE: The ADTC/DAA treatment center is responsible for any misrepresentative, overissuance, or Intentional Program Violation.

- e. Ensure the use of a Point of Service (POS) device. Effective September 2026, FNS benefits will be issued to the FNS recipients' EBT cards. ADTC/DAA's will no longer have one card for residents in the facility. FNS recipients will have their own card. To purchase food for FNS recipients, ADTC/DAA facilities are required to have a Point of Service (POS) device. If a facility declines to get a POS device, then that facility will no longer be an authorized representative for FNS recipients to purchase food. Therefore, facility staff are responsible for assisting each FNS recipient with purchasing their own food.
- f. Each treatment center must have a PIN Safeguard Plan on hand. It is the responsibility of the county to share the plan with the treatment centers. The PIN Safeguard Plan should include the following elements and NC-specific EBT security procedures:

PIN Safeguard Plan	
Establish Unique PINs	Ensure clients do not use simple PINs (e.g., 1234, 1111) or predictable numbers (e.g., birth years).
Regular PIN Changes	Encourage, or for ADTCs manage, the regular changing of the client's PIN (at least monthly or when benefits are loaded) http://www.ebtedge.com/ .

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No Sharing Policy	Enforce a strict policy that, except for Authorized Representatives, clients must not share their PIN or card with anyone, including other residents or staff.
Immediate Reporting	Report lost, stolen, or damaged cards immediately by calling 1-888-622-7328.
Secure Storage	For ADTC/DAA facilities holding cards, cards must be stored in a secure location.

NC-Specific EBT Security Procedures	
Locking Cards	Utilize the EBT app to lock/freeze the card when not in use to prevent fraudulent transactions, particularly if residents are leaving the facility.
PIN Change Method	Change the PIN through the secure IVR system (1-888-622-7328) or http://www.ebtedge.com/ .
EBT Edge Tools	Block out-of-state and online transactions using the ebtEDGE mobile app or web portal.
Skimming Check	Inspect point-of-sale terminals for, or report, suspicious overlays on card readers.

- g. Ensure the use of the FNS Monitoring Tool. To meet the quarterly data reporting requirement from the United States Department of Agriculture (USDA), DSS is required to use the FNS Monitoring Tool for all site visits. The FNS Monitoring Tool must be completed by the facility and DSS and submitted by DSS to DCFW.FNS.Policy@dhhs.nc.gov by **the last day of each month**. Submission must include the following:

FNS Monitoring Tool	
EBT Balances	The starting balance of EBT cards at the beginning of the reconciliation period and the current balance at the time of reporting.
Resident Documentation	An updated list of all current facility residents.

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Benefit Accountability	The total number of benefits expunged, if applicable, and the number of benefits overissued to the facility, if applicable.
Fraud Referrals	Indication of any fraud referrals initiated as a result of the reconciliation process and the total number of referrals completed.

4. Responsibilities of the County Department of Social Services.

- a. Ensuring every ADTC/DAA treatment center has the DSS-1688 Designation of Authorized Representative form on file, including the name of the authorized representative and ADTC/DAA treatment center.

b. **Key Routine Dates:**

5th and 20th of Each Month	10th and 25th of Each Month
Designating a point of contact for the ADTC/DAA treatment center to provide a list of the clients that are residing in the treatment center.	Conducting a site visit with the center official/authorized representative at the ADTC/DAA treatment center to verify the list provided by the treatment center is accurate.

- c. Take action on any discrepancies found by the site visit prior to the next benefit issuance date.
- d. **Ensure a PIN Safeguard Plan is in place and that the plan is shared with the ADTC/DAA treatment center. Required elements of the PIN Safeguard Plan include:**

PIN Safeguard Plan	
Replacement Cards	The FNS recipient, together with the authorized representative for the treatment center, will contact the EBT Call Center to deactivate the card and request a replacement as soon as fraud is reported. Clients should be reminded to set a new,

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	secure PIN once the new card is issued.
Educate on Fraud	Inform clients that neither DSS nor NCDHHS will ever ask for their PIN.
Authorized Representatives	Verify authorized representatives are properly designated in NC FAST for ADTC/DAA residents.

- e. Ensure the use of the FNS Monitoring Tool during all site visits. To meet the quarterly data reporting requirement from the United States Department of Agriculture (USDA). DSS is required to use the FNS Monitoring Tool for all site visits. The FNS Monitoring Tool must be completed by the facility and DSS and submitted by DSS to DCFW.FNS.Policy@dhhs.nc.gov **by the last day of each month.** Submission must include the following:

FNS Monitoring Tool	
EBT Balances	The starting balance of EBT cards at the beginning of the reconciliation period and the current balance at the time of reporting.
Resident Documentation	An updated list of all current facility residents.
Benefit Accountability	The total number of benefits expunged, if applicable, and the number of benefits overissued to the facility, if applicable.
Fraud Referrals	Indication of any fraud referrals initiated as a result of the reconciliation process and the total number of referrals completed.

F. Residents of Public or Private Nonprofit Shelters for Homeless Persons

Residents of public or private nonprofit shelters for homeless persons are allowed to use their Food and Nutrition Services benefits to purchase prepared meals from USDA approved homeless meal providers.

Individuals who are residents of public or private nonprofit shelters for the homeless are the exception to the requirement that states residents of institutions that provide individuals with the majority of their meals (over 50%) of three meals daily are not eligible for Food and Nutrition Services benefits.

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A homeless shelter, however, cannot be the authorized representative for the homeless individual. Even though a shelter provides meals, it does not mean that the individual that stays in the shelter is there to partake of the meal provided. The individual is still homeless and may still wander during the day and stay at the shelter at night. The individuals in a homeless shelter can participate in the program and must be treated as separate households from the others with whom they reside, subject to mandatory household combination as required by law (i.e., homeless spouse in the same shelter cannot be a separate household).

212.04 HOUSEHOLDS WITH SPECIAL CIRCUMSTANCES**A. Temporary Absence**

There is no provision for temporary absence in the Food and Nutrition Services Program. At application and recertification exclude an individual who is residing away from the FNS unit on a temporary basis. Refer to Manual Sections 450 and 550 to determine appropriate reporting requirements.

B. Absent Wage Earners

An absent wage earner is an individual who is often away from his/her residence because of the distance to work. Include an absent wage earner in the FNS unit. To exclude the absent wage earner, the FNS unit is responsible for establishing that the wage earner is not an FNS unit member. If the absent wage earner maintains a separate residence from the FNS unit, consider whether the individual is separate from the FNS unit. Evaluate each case on its own merit using the best available information.

Some examples of absent wage earners may include, but are not limited to, individuals who drive trucks, fish commercially, and those who are traveling salespeople.

C. Military Personnel

Military personnel are often stationed away from their households with little advance warning. Individuals "left behind" for undetermined periods of time that are 30 days or more in length may apply for Food and Nutrition Services benefits. This applies to both temporary duty (TDY) and permanent change of station (PCS). Determine eligibility based on the situation of the remaining FNS unit members. Consider any gain or benefit that is not in the form of money as in-kind and exclude it as income. Count any contribution made by the member to the FNS unit as unearned income. If a military allotment is being sent to the FNS unit, count as unearned income to the FNS unit. If the FNS unit shares a joint bank account with the absent military personnel and their pay is directly deposited into this account, count the money as unearned

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income to the FNS unit. Upon return of the military member to the FNS unit, count all income and resources at the time the change occurred. See Section 250, Resources, and 4070 in the Integrated Eligibility Manual, Income, for resources and income procedures.

D. Migrants

Migrant farm laborers travel either in state or out-of-state often following a particular crop. Because these households have no fixed place to reside during the work season, residency can be difficult to determine. Verifications may be obtained through the crew leader, the local farmer, or the following organizations.

1. Employment Service
2. Farm Labor Bureau
3. Rural Manpower Development
4. Farmer's Cooperative Service
5. The Grower's Organization
6. Migrant Service Organization
7. The County Agriculture Extension Services Agency

E. Strikers

A striker is anyone involved in a strike. Persons on strike are not considered to have quit their jobs. FNS units containing a striker(s) are **ineligible** unless the striker(s) is exempt from work registration (See FNS 240 Work Registration) or was eligible prior to the strike.

F. Joint Custody

A joint custody agreement is not required to be a court document; it can be a verbal agreement between the parents. The child must be included in the FNS household that they physically live with the majority of the time, regardless of the terms of a custody agreement.

1. 50/50 Custody:

In cases of joint custody where a child lives exactly the same amount of time with each parent, the household that applies for FNS benefits first may include the child in their FNS unit.

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2. Other Custody:

The parent that the child lives with for 51% or more of their time is the only parent that may include the child in their FNS case. The other parent may not include the child in their FNS case unless custody changes.

G. Students

If a student attends college and returns home often, the residence is determined by where the student states that he/she eats the majority of his/her meals. This only applies to students who are eligible to receive Food and Nutrition Services benefits based on the eligibility requirements in FNS 235 Student of Higher Education.

H. House Arrest

A person placed under house arrest by the court is to be included in the FNS unit unless their conviction is a drug-related felony. The individual must still meet all Food and Nutrition Services eligibility requirements, such as Work Registration, Resources, etc.

I. Refusal to Cooperate with Quality Control Review

A household is ineligible to participate in the Food and Nutrition Services if it refuses to cooperate with State and/or USDA staff who conduct Quality Control (QC) Reviews. Cooperation includes, but is not limited to, being available for a personal interview and providing requested information. Terminate Food and Nutrition Services benefits if a State or Federal QC Reviewer informs the agency of a household's refusal to cooperate. If a household is terminated for refusal to cooperate with a QC Reviewer, the household can reapply at any time but cannot be determined eligible until it cooperates or the disqualification time period ends. The QC Referral will indicate the maximum disqualification for refusal to cooperate. Do not terminate Food and Nutrition Services benefits based on an FNS unit's refusal to cooperate with QC in another state.